

Kifisias Avenue 1-3, 11523 Athens
T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 28-02-2024
Protocol No.: 669

DECISION 9/2024

The Hellenic Data Protection Authority convened, upon the invitation of its President, in an extraordinary session via teleconference on 28-07-2023. Present were Konstantinos Menoudakos, President of the Authority, and the regular members Spyros Vlachopoulos, Konstantinos Lamprinouidakis, Charalampos Anthopoulos, Christos Kalloniatis, as rapporteur, and Grigorios Tsolias. The regular member of the Authority Aikaterini Iliadou and her alternate Nikolaos Faldamis were absent, despite being duly summoned in writing, due to an impediment. In the session, without voting rights, were present, by order of the President, Georgios Rousopoulos, a specialized IT scientist, as assistant rapporteur, and Georgia Palaiologou, an employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

The Authority has received numerous complaints from telephone subscribers related to receiving telephone calls for the purpose of promoting products and services of the company ELPEDISON ELECTRICITY PRODUCTION SINGLE MEMBER S.A. (hereinafter Elpedison). In these cases, the Authority forwarded each complaint to Elpedison, usually within a short period, so that the company could investigate the allegations and present its views. Subsequently, the Authority examined Elpedison's views to ensure that all elements of each case were complete, sending further documents for clarifications when deemed necessary. In cases where the complaint was not confirmed (e.g., when the complainant was not registered in the Registry of Article 11 paragraph 2 of Law 3471/2006 - hereinafter the Registry - or had not exercised an objection based on Article 21 of the GDPR), the Authority rejected the complaint, responding to the complainant. For cases where, after the aforementioned examination of the case, it was likely that the complaint was confirmed or appeared to be valid, even if this was not accepted by the company, the Authority grouped the relevant cases for joint examination.

In this specific case, forty (40) complaint cases are being jointly examined, which are included in the Appendix of this document. After completing the files of the complaints and considering Elpedison's views on each of the complaints, they were categorized as follows:

Category A (6 complaints): Cases for which Elpedison appears to accept that there was a violation, primarily concerning its activity as the data controller.

Category B (3 complaints): Cases in which the respective complainant provides sufficient evidence and proof for the documentation of advertising calls made on behalf of Elpedison, but during the investigation of each complaint case and the completion of its file, Elpedison provided evidence from its collaborating companies, based on which it does not accept, in a documented manner, the conduct of calls to the specific complainants.

Category C (29 complaints): Cases in which from the initial investigation of the complaints and Elpedison's views, it emerges that while Elpedison has - correctly - sent the details of the complainant's telephone number to its collaborating companies, which conduct telephone calls for its promotional purposes, so that this number would not be called, these companies, for various reasons, failed to prevent the call to the complainant. Therefore, in these cases, it appears that there is liability, beyond Elpedison, of the respective company conducting the telephone calls (hereinafter also call center). These complaints concern the following companies:

- a) BEFON TELECOMMUNICATIONS Single Member LLC (hereinafter Befon): three (3) complaints (with references G.A.1 to G.A.3 in the Appendix).
- b) CALL EXPERTS CALL CENTER SERVICES I.C.C. (hereinafter Call Experts): eleven (11) complaints (with references G.B.1 to G.B.11 in the Appendix).
- c) Teleraise I.C.C. (hereinafter Teleraise): one (1) complaint (with reference G.C.1 in the Appendix).

d) ST & Co. E.E. (hereinafter Zitatel): eight (8) complaints (with references G.D.1 to G.D.7 and G.E.71 in the Appendix).

e) PLEGMAT NET M.E.P.E. (hereinafter PLEGMAT): seven (7) complaints (with references G.E.1 to G.E.7 in the Appendix).

Category D (2 complaints): Cases of complaints that were under investigation at the time of the companies' summons to a hearing at the Authority.

The issues raised for examination in the above complaints are summarized as follows:

1. Cases of Category A

In 4 out of the 6 complaint cases (cases with references A.{1,3,4,6} in the Appendix), from the details of each file, it appears that Elpedison delayed by a few days at some stage of the process of updating and sending the Registry to the collaborating companies, resulting in the number of the called subscriber not being sent in a timely manner to the call center companies, and a call being made to them. This process, which has been described in detail in Elpedison's memoranda and procedures, includes: a) receiving the registry from the providers once a month, b) merging the Registry of different providers, and c) sending the consolidated Registry to the collaborating companies, which must then use it for the calls they make. The delay is specifically noted in each specific case as follows:

- A.1: Elpedison delayed by a few days to transmit the Registry.

1 This complaint concerns both Zitatel and PLEGMAT.

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(six -6- days according to her initial response), in June 2020. The file was sent on 14/6/2020 while the call had been made on 11/6/2020.

- A.3: The call was made on 17/9/2020 while the complainant had been registered in the Registry in August 2020. Elpedison collected the Registries and sent them to the call centers on 15/9/2020 (Tuesday). The processor (call center) updated its system (dialer) with a delay of one working day, which can be considered reasonable.

- A.4: The call was made on 4/11/2020. The complainant's number was not included in the file that Elpedison received from its provider in October 2020, but was in the file for November. Elpedison received this file on 9/11/2020.

- A.6: The subscriber was registered in the registry on 08/02/2022, while she received the call on 15/3/2022. The number was obtained by Elpedison from the March Registry from the complainant's provider, but since another provider delayed sending its own Registry, Elpedison delayed sending the files with the Registries to the call centers (the sending took place on 16/3/2022), an action it took without ultimately including the Registry of the provider that delayed.

- A.2: From the case file, it appears that during the examination of the first 2 calls related to the complaint, the called number was not included in the Registry. Elpedison stated in writing that it included the phone number in the internal objections registry (which it practically maintains for the implementation of Article 21 of the GDPR), but a new call was made on 20/10/2020. The company states that due to a clear and unintended error by an employee, the implementation of the inclusion of the number in the internal objections registry had not been completed.

- A.5: The complainant was a subscriber of the provider InterTelecom. Elpedison accepts that it did not receive the registry from this company.

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After the complaint, it included this company in those to which it sends requests for obtaining the Registry.

2. Category B Cases

The three cases in this specific category present different incidents.

In case B.1, Elpedison accepts that a call was made (out of two -2- mentioned in the complaint) to a number of the complainant, but denies any call to the other number. To this end, it provides a relevant certificate from the company that provides the software to the processor (call center). Regarding the one call that was made, Elpedison claims that it lasted one second and that it was made following a

request for objection from the subscriber, with the aim of registering the number in the internal registry. It is noted that the call, according to the complainant, was with caller ID blocked. In a second, supplementary complaint, two (2) newer calls are mentioned, which the complainant sufficiently documents by providing screenshots from a mobile device. However, Elpedison, in a more recent document, while accepting that the number belongs to a partner of theirs, denies that calls were made, providing a certificate from the processor, which indicates that the number has been excluded from calls. In a subsequent, third document, the Authority requested explanations for the discrepancy between the information provided by the complainant and that presented by the processor. The company provided more complete data, from which it appears that the call was not made and states that the subscriber must now provide evidence (of incoming) calls. In its fourth document, the subscriber mentions a new call (this time unanswered). The company, responding with its fourth document, denies that this call was made, providing a list of outgoing calls from the processor. In its fifth document, the complainant again mentions a call, this time including the surname of an employee at the call center company with whom he spoke. On the other hand, the call center company, to which the number belongs, provided a document from its provider with a copy.

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of outgoing calls for two months, to prove that the call was not made, as the number of the complainant is not included in them. In case B.2, the complainant's number was registered in the Registry. The company denies the call, providing a printout from the call center's system which shows that no call was made. The complainant responded by submitting a screenshot from his device, which shows the first call and two more (the first on 5/7/2021, the next on 26/7/2021 and 6/9/2021). The company reiterates that its partner sent call records (which were submitted to the Authority), from which no call is indicated. In case B.3, the complainant mentions two calls made on 22/2/2022 and 25/2/2022 respectively. After filing the complaint, he mentions a new call on 7/4/2022. For the calls, he provides screenshots from his device. It also appears that the complainant's phone number had been included in the Registry. According to Elpedison, a check conducted by the call center revealed that no call was made from its phone numbers to the complainant's phone number, attaching a list of outgoing calls as evidence. From this list, it appears that there was one call from the complainant to the call center, which he also mentions and which seems to have occurred 4 minutes after the call that the complainant states he received. The company speculates that the appearance of its numbers in the screenshots is due to a possible call diversion by the complainant.

3. Cases of Category C

C.A BEFON

In the three cases of complaints (two in 2019 and one in 2022), Elpedison accepts mistakes by Befon (human and systemic) for the first two calls. In the third complaint, the complainant, who was registered in the Registry, states that he entered his number in an online form in order to receive a call from Elpedison. After receiving two related calls, he requested not to be called again. The collaborating company admits that while it received this request, it did not register it correctly due to a technical failure and proceeded with subsequent calls. Befon states that it has already taken measures to resolve such operational failures by installing special software.

C.B Call Experts

In most of the complaints concerning this company (7 out of 11), the calls mentioned in the cases seem to be due to this company's delay in integrating the file with the Registry (or the specific objections) after it was transmitted by Elpedison. According to Call Experts, this is due, on the one hand, to the large volume of files (over 11,000,000 phone numbers), which require separate formatting before being imported into its system, and on the other hand, to the long time required for loading them into the relevant system, which must be done on non-working days and hours. The delay period is as follows in each case:

- C.B.4: one (1) full working day (without a weekend intervening)
- C.B.5: one (1) full working day (without a weekend intervening)
- C.B.6: eleven (11) days
- C.B.8: six (6) days (with a weekend intervening)

- C.B.9: three (3) days (with a weekend intervening)
- C.B.10: four (4) days (with a weekend intervening)
- C.B.11: five (5) days (with a weekend intervening)

In the other cases, specific issues are mentioned as follows:

C.B.1 and C.B.2: Call Experts states that due to a technical issue, some calls are not "cut off" in advance, but after 2-3 seconds. It also claims that in the first case, no conversation took place (which the complainant disputes).

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C.B.3: Elpedison states that a violation occurred due to "unintentional human error" by the processing executor (Call Experts) as the Vodafone Registry of March 2021 was loaded into the dialer system instead of that of April 2021.

C.B.7: The complaint concerns a call on 4/1/2022. Elpedison reports an error by the processing executor. Specifically, on the first working day of the year (3/1/2022), Call Experts renewed and upgraded licenses (however, it does not specify which licenses and which systems are affected). With this specific update, errors occurred, which were corrected on 8-9/1/2022, which were not working days (weekend).

C.G TELERAISE

C.G.1: Elpedison accepts an illegal call. A systemic error is reported in the processing company Teleraise due to an upgrade, which was subsequently corrected.

C.D. Zitatel

In most of the eight (8) complaint cases (C.D.1-7 and C.E.7), Elpedison states that the processing company Zitatel claims that some error has occurred (either a systemic technical error – C.D.1, C.D.2, C.D.3 – or human when making a manual call – C.D.4, C.E.7).

In the other cases, the following is reported:

C.D.5-C.D.6: In these cases, Zitatel appears to be involved not only in the execution of each call but also in the initial collection and processing of the phone number of the called subscriber. In the first case, it is stated that the call was made after the complainant's phone was registered on the website "www.fthinoreyma.gr". Zitatel believes that there is consent (even if this action was not taken by the complainant as the data subject but by a third party, e.g., malicious). The complainant argues that he did not enter his details on such a website. In a letter, the Authority pointed out that the consent process cited by the company does not seem to comply with Directive 2/2011 and the...

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Prerequisites for GDPR Consent. It was also noted that, on this website, a different company is mentioned as the data controller and not Zitatel. In its subsequent document, Elpedison states that it is not the data controller for this specific action, but rather the company collaborating with it, although it mentions that it will investigate the matter, while asserting that it cannot control the specific website. In the second case, Elpedison refers to an employee's oversight from the collaborating company. Zitatel states that the complainant was contacted within the framework of an existing customer relationship, which, however, is not confirmed by Elpedison. According to Zitatel, following a later request from the complainant to refrain from further calls, a call indeed followed, which was due to an employee's mistake as the complainant's number had been registered for a callback. After the response to the Authority, a new call was made, this time with caller ID blocked. Elpedison again cites an error by the data processor (Zitatel). It adds that it conducted an on-site inspection and sent recommendations via email, including a recommendation for the collaborating company to apply the Registry to all numbers listed on "fthinoreyma.gr".

G.D.7: The company had not collaborated with Elpedison, providing the necessary clarifications, until the hearing notice.

G.E. PLEGMAT

In three (G.E.4, G.E.5, G.E.6) out of the seven total cases, PLEGMAT states that the call was made solely due to a systemic error during the update of the "local dialer" system, which is used among other things to exclude numbers from the Registry from the calls made. Specifically, at least on the dates

07-02-2022, 08-02-2022 (the first two complaints), and 16-02-2022, PLEGMAT reports that it faced a technical problem in the interface with its provider due to a technical failure, resulting in calls not being able to be made from the "cloud dialer" system located at the company MED NAUTILUS. PLEGMAT states that it "switched" its sales employees to the "local dialer" system available at its facilities (as provided for in the Business Continuity Plan based on ISO 27001). PLEGMAT estimates that the time was insufficient for the "local dialer" system to be fully updated with the numbers to be rejected, as the process of updating the local system requires some time to be fully completed.

In the other cases, the following is noted:

- G.E.1, G.E.3: The call center called because it classified the action as a "callback." Three (3) calls were made in the first case, while in the second, the call was made manually. No documentation is provided for the purpose of the callback (e.g., whether it arose after an action by the subscriber).
 - G.E.2: PLEGMAT states that no call was found to the complainant's number on that specific day. However, it voluntarily mentions that calls were made after 22-04-2022 from the "CAMP1" campaign during which a customer is called after their agreement - consent for a callback to settle outstanding matters. In this case, the Registry is not checked, as the Customer themselves has requested and/or consented to be called at a later time.
 - G.E.7: According to the response with reference number G/EIS/3090/07-05-2020 from Elpedison, the complainant exercised the right to object on 24-01-2020 while not being registered in the provider's Registry. The complainant later stated that they received a total of five (5) calls (the first on 13-02-2020, while they mention four more after the passage of a month from the date of exercising the objection). Elpedison does not acknowledge that one of these calls was made. In a later document from Elpedison (G/EIS/7350/26-10-2020), a response from PLEGMAT is provided, indicating that two calls were made on 13-02-2020 and 31-03-2020 due to an error, despite the number having been included in the internal objections file to avoid being called. With this document, Elpedison states that
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Ultimately, the complainant's number was included in the internal register of objections after the receipt of the Authority's document (sent in April 2020) and not on 24-01-2020 as initially stated due to an error.

4. Category D Cases

In these two cases, Elpedison's views had not been submitted by the day of the hearing at the Authority. The first concerns a complaint in which Call Experts may be involved as the data processor, while in the second, Zitatel.

Regarding its general activity, Elpedison had noted prior to the hearing (see its document with protocol number Γ/ΕΙΣ/6019/13-04-2022) that it conducts telephone calls through its external partners to inform consumers about its products and services.

In compliance with the applicable legislative framework and the decisions of the Authority, it has established specific procedures for conducting the aforementioned outbound calls, which are described in detail in the document with protocol number Γ/ΕΙΣ/8221/17-10-2018 submitted to the Authority. The collaborating call center companies, acting as data processors, have been selected based on strict criteria, have committed within the framework of cooperation contracts to apply the provisions of both the GDPR and Law 3471/2006, and are regularly monitored regarding compliance with the relevant legislation. In February 2022, it completed the regular inspection of its partners and is in the process of evaluating the results to make decisions regarding the instructions to be given to them on issues requiring improvements. It also emphasizes that it has communicated specific instructions to its partners regarding the processing of personal data, which include the procedure for making outbound calls (see "Guidelines for the Management of Personal Data by Elpedison's Partners"). All partners conduct training for their employees at regular intervals to minimize any violations of Elpedison's procedures.

Elpedison specifically highlights the difficulties created by the implementation of Law 3471/2006, which it states have also been recognized by the Authority in various decisions. It specifically mentions that the Register counts (according to the last inspection) more than 11,000,000 telephone numbers, a figure it believes does not reflect reality and raises questions regarding the receipt of objection

requests by providers. However, the size of these specific files (Registers) also creates numerous problems during their clearing and formatting (especially for those executing the processing), while, additionally, the time required to update the information systems is significant. Problems also arise from time to time due to related delays in collecting the Registers, as they are not sent in a timely manner by the providers. In March 2022, for example, one of the three main telephone providers had not sent the Register by the 17th day of that month. It argues that naturally, the aforementioned difficulties increase the likelihood of error without the fault of Elpedison and its partners.

Following the above, the Authority proceeded to call for a hearing in the plenary session on 19/7/2022 for the following:

- Elpedison for all complaints and for its general practice regarding telephone calls for promotional purposes
- the companies Call Experts, Zitatel, and ΠΛΕΓΜΑ, for the complaints of categories C and D that concern them and for their general practice in the context of their cooperation with Elpedison. Specifically for Zitatel, it was noted that its role regarding the data collected through the website fthinoreyma.gr would be examined.

During the session on 19/7/2022, all four aforementioned companies were present and submitted a request for postponement of the discussion of the case, which

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was accepted. The Authority proceeded with new summonses for the companies on 13/9/2022 (ref. no. Γ/ΕΞΕ/2197-2200/06-09-2022). In this session, the following representatives of the four companies attended via videoconference: On behalf of Elpedison, Marios Andrikopoulos, Director of the Legal Department with ID number ΔΣΑ ... and from the Legal Department, Despina Kollia with ID number ΔΣΑ ... and Eleni Miga with ID number ΔΣΑ On behalf of PLEGMA, A, ... and the company's attorney-at-law Alexandros Koliiothomas with ID number ΔΣΑ ... while B, the Data Protection Officer of the company, also attended. On behalf of Zitatel, the representative was G. On behalf of CALL EXPERTS, D, the legal representative of the company, E, a shareholder, and the attorney-at-law of the company Alexandros Koliiothomas with ID number ΔΣΑ The representatives of the companies orally presented their views, were given a deadline, and submitted memoranda, with the exception of Zitatel, which did not submit a memorandum, referring (as stated in a phone conversation) to the views of Elpedison. Specifically, Elpedison submitted its memorandum no. Γ/ΕΙΣ/10818/07-10-2022, which summarizes the following points: The cases reported to the Authority concern isolated instances of errors and not cases of systemic failure on the part of the company, let alone deliberate action. They are isolated incidents, as evidenced by their small number, which were corrected immediately. It is evident that inevitably, during the daily operations of both Elpedison and its partners, human and technical errors occur from time to time, which are evaluated by the company and serve as a springboard for improvement in order to take the necessary corrective measures and ensure strict compliance with the terms and conditions of the applicable legislation. Elpedison provides its views on the specific cases of complaints, adding or clarifying the following elements, in relation to what it had stated to the Authority during the stage of completing the file for each case:

A.1: The slight delay in notifying the register to the partners was due solely to a clear human error by the employee who was responsible for carrying out this specific process, as evidenced by the documents submitted by the company.

A.2: From the internal communication provided, it appears that the inclusion of the phone number in the company's "do not call list" was mistakenly perceived as implemented – with a relevant reference being erroneously included in the initial letter of the company.

A.3: The collaborating call center (Call Experts) delayed in sending the investigation data, which has been assessed as inadequate behavior on its part and has been duly taken into account by Elpedison. The company has also provided explicit instructions for not making calls with withheld numbers and for appropriately informing the called parties. To prove this, a letter from Call Experts is also submitted.

A.4: This is a case that demonstrates the difficulties in applying the current legislation for making calls for the purpose of promoting products and services. Given the periodicity regarding the receipt of the respective files, an asymmetry is created between the numbers reported at the beginning of each

period and the remaining ones, as for the former, the 30-day period has almost automatically elapsed as soon as the company receives each list – where it should be noted that a reasonable processing time is also required. Therefore, a question of proportionality and legitimate leniency arises if the right to complain is exercised nonetheless. Objective difficulties arising from the implementation of the current procedures, as derived from the relevant provisions, cannot be overcome even with measures of utmost diligence.

A.5: The involvement of a wholly peripheral telecommunications company in a number of subscribers must be taken into account and evaluated. The relevant register of licensed telecommunications providers numbers several hundred companies. Coverage of more than 99.95% of the total subscribers,

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makes Elpedison's policy fully compliant with the requirements of the applicable legislation.

A.6: In this specific case, the company does not incur any liability, given that for reasons of coherence and effectiveness, a single registry should be sent. This was not possible due to a delay from one of the main telecommunications providers.

B.1: Given the facts of the case, Elpedison believes that this specific complaint should be archived as there was no fault on its part or on the part of its partner.

B.2: Elpedison requested the cooperating call center (Zitel) to send the analysis of outgoing calls from the telecommunications provider in order to provide additional information; however, no relevant analysis was sent. Consequently, it considers that it bears no liability regarding this specific call.

B.3: Elpedison's partner (PLEGMAT) informed that no calls were made to the complainant's phone number, and to support its claims, an analysis of outgoing calls from its provider was submitted.

Therefore, the company believes that no liability arises for either itself or its partner.

D.1: Elpedison forwards the response from the cooperating call center (Call Experts) dated 12/9/2022, from which a delay on its part in sending the data is evident, which it considers to be a negligent behavior of this specific partner / processor in providing the requested information in a timely manner, and it has been evaluated by Elpedison in relation to the context of their cooperation. Furthermore, it believes that based on what the company Call Experts states, no liability can be identified for Elpedison and concludes that in this case, this company did not follow the given instructions.

D.2: Elpedison's partner (Zitel) did not provide data. The negligent behavior of this specific partner has been evaluated by Elpedison.

In addition to examining the individual complaints, Elpedison states that it systematically follows specific procedures for recording and monitoring complaints and requests from data subjects with the aim of continuously improving processes and monitoring its partners. The result of this approach is the small number of complaints, as well as their fragmented nature, since none of them indicate systematic negligence or systemic failure on its part. Individual omissions do not negate a general picture of compliance.

Elpedison also states that it systematically conducts inspections at the cooperating call centers through an external consultant, with a frequency of approximately one inspection per year, focusing on checking the implementation of the procedures communicated to them as well as the fulfillment of their obligations. The last inspection took place in 02/2022 with on-site sampling checks at all call centers except one (TELERAISE), where it was conducted via a remote questionnaire. The inspection did not reveal any critical findings, and in any case, a deadline was set until the end of 09/2022 for compliance. Within the first half of 2023, a new inspection is expected to commence regarding the corrections made by the partners based on the findings. Regarding the calls that the cooperating companies claim were not made, Elpedison states that it has not become aware of the use of mechanisms outside the prescribed procedure. In the context of the inspection by its consultant, among other things, the applications and systems used for calls were recorded, and the measures taken for their proper use were noted (following the fields of the ISO 27001 standard). There was no possibility to check if other parallel means or systems were used for making calls; moreover, this requires a technically complex process; however, in any case, there were no indications suggesting the need for further specialized inspection.

The detailed inspection reports were forwarded to the Authority. From the supervision...

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the issues that are the subject of the complaints, the above references in Elpedison's memorandum were confirmed. It is specifically noted that the audit concerned organizational and technical measures, while it does not appear to have included (random or full) checks regarding the calls that have been made. Elpedison also states that, in compliance with applicable legislation since May 2018, it has established and implemented a specific policy for the protection of personal data and the proper application of the GDPR. In this context, its partners, who act as data processors, have been selected based on strict criteria, have committed in their cooperation agreements to apply the provisions of both the GDPR and Law 3471/2006, and are regularly monitored by Elpedison for compliance, while written and oral recommendations are provided to them as necessary. At the same time, the company includes specific terms in the contracts it enters into with its partners regarding the execution of outgoing calls, in addition to the relevant instructions communicated to them.

Regarding the website fthinoreyma, Elpedison states that it reached an agreement with its partner ST AND CO LLC and agreed that the said website would be designed as a site that exclusively advertises its products. This was reflected in the relevant agreement of the year 2022. Consequently, after this contract, the said partner acts as a data processor, and Elpedison believes that it has taken due care and acted promptly and with appropriate compliance measures, regardless of its prior indirect responsibility.

Call Experts submitted its memorandum No. G/EIS/10817/07-10-2022, in which it briefly states the following:

Call Experts strictly adheres to the applicable legislation, and in this case, the proper monitoring of registered phone numbers in the Registry, and continuously makes every possible effort to comply with its obligations, taking into account that it has taken organizational measures to ensure the guarantees required for its compliance with the legality conditions during the execution of promotional and other actions, possessing not only appropriate and documented procedures according to international standards (ISO), but also having provided written and detailed instructions to its staff for the strict adherence to the procedure for maintaining the Registry. The company collaborates with Elpedison as a "Data Processor" based on a contract - which is attached - for the purpose of expanding Elpedison's customer base through the promotion and sale of products via sales channels in the sales area, with the aim of entering into supply contracts with selected customers. For this purpose, Call Experts makes calls based on a "cold list" and/or "warm list" (as these lists are widely known in the relevant sector).

A "cold list" is defined as a list consisting exclusively of phone numbers that is created automatically based on the so-called "random number allocation spectrum."

A "warm list" is defined as the database list, usually of the existing customer base of the data controller, which contains, in addition to the customer's subscriber phone number, other details of the latter, such as name, postal address, and email address. This list is transmitted by the data controller to the call center in order for the latter to make phone calls to the aforementioned customers - subscribers in the name and on behalf of the data controller for the promotion of the latter's products/services according to the explicit instructions and directives provided each time.

The company describes in detail the process it follows for calls based on a "cold list," according to which the final list (electronic file) of phone numbers to which calls are to be made is created after first excluding, through an automated process, the phone numbers to which promotional calls cannot be made according to the applicable legislation and includes:

I) An electronic file with the phone numbers that are

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registered in the Registry. This file is obtained by the Company electronically (usually during the first 10 days of each month for the previous month) from all major telecommunications providers as well as

from the company Elpedison on a monthly basis.

II) Electronic file with the phone numbers registered in the Objections Registry maintained by Call Experts. After the above process excludes the phone numbers, the electronic file with the remaining phone numbers from the selected numbering range is imported into the dialer, which then begins to call these numbers. The dialer transmits the calls made in this manner to the employees of Call Experts responsible for the promotional activity (sales). The employee first informs the called party of their name, from which company they are calling (Call Experts), as well as that they are calling on behalf of the company Elpedison. There is no concealment of the calling numbers. Personal data is collected if the called party expresses interest in the offer and the negotiation process for the conclusion of a contract is to begin. Call Experts also states that it is audited regarding the proper implementation of the "opt-out" registry and the other rights of the data subjects by Elpedison. In relation to the individual cases of complaints, Call Experts states the following:

G.B.1: It accepts that it made calls on the dates and times approximately indicated in the complaint (21-01-2021 and 03-02-2021), but claims that they were unanswered and terminated within 2 seconds, without accepting that there was communication between the complainant and its employee. The company states that the complainant's number was included in the Registry of January 2021, but not in February 2021, and that as it "loads" the Registry sent by Elpedison on a monthly basis into its information systems, which amounts to approximately 14 million phone numbers, it happens (very rarely) when a user of the company heavily burdens the information system (e.g., pulls a very heavy report or loads a new list) that the system may take time to "react," but again it is a matter of seconds. It claims that for this reason the complainant's phone number was called by the company's dialer, which (dialer) terminated the above phone calls within 2 seconds (because it "recognized" (sic) that the phone number is registered in the Registry). The company attributes the calls to a minor technical delay.

G.B.2: Although the complainant's number was included in the Registry file received from Elpedison on 03-02-2021, the "loading" of this specific Registry into its information systems was completed shortly after the time Call Experts called the complainant on 05-05-2021 (a call for which the complainant did not complain to the Authority). This call was unanswered and was routed in the company's information system for automatic redialing, which occurred on 23-02-2021. The company states that the call lasted only 2.8 seconds and was terminated (without being answered) almost immediately by the dialer which "recognized" with this infinitesimal delay that the complainant's phone number is now registered in the Registry.

G.B.3: The dialer system should not have called the complainant's phone number on 28/04/2021, as the electronic file with the Registry for March 2021 had already been received from Elpedison on 08/04/2021. From its further investigation, it was found that the company's information systems manager mistakenly and without intent loaded the file for February 2021.

G.B.4: It accepts that it made a call on 09-06-2021 to the complainant's number, which was included in the Registry, which is solely due to the timing of receiving this specific Registry and the time required for it to be "loaded" into its information systems. Specifically, it received the Registry for April 2021 (note: obviously May as the subscriber registered in the Registry on 07-05-2021), only on 07-06-2021 and the "loading" of this specific Registry into

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its information systems was completed shortly after the execution of the disputed call, namely on 09-06-2021 and after the end of that day's shift, and no further calls were made to the telephone number thereafter.

G.B.5 – G.B.6: Accepts that it made calls on 09-07-2021 and 16-07-2021 to the numbers of the complainants, who were registered in the Registry, which are solely attributable to the time of receipt of the specific Registry (07-07-2021) and the time required for it to be "loaded" into its information systems, taking into account summer vacations and the absence of a specific senior executive. After the exercise of the right to object by the complainants during the disputed phone calls, Call Experts promptly took the necessary remedial actions to avoid any further disturbance to them for advertising, promotional, or other actions and has additionally included their telephone numbers in the objections

registry it maintains, and no other calls have been made.

G.B.7: Accepts that it made a call on 04-01-2022 to the number of the complainant, who was registered in the Registry. On the first working day of the year (03-01-2022), the company renewed and upgraded some licenses (note: which are not explicitly identified). With this specific "update," some errors arose (note: which are also not identified), which were corrected on 08-01-2022 and 09-01-2022, which were not working days (weekend). The company states that "Obviously, within the framework of the specific technical problem we faced, this call was also made, which in no case is due to fraud, bad intention, or conscious non-compliance with the legal obligations of our Company," and that it has included the telephone number in the objections registry it maintains, and no other calls have been made.

G.B.8: Accepts that it made a call on 17-01-2022 to the number of the complainant, who was registered in the Registry. The call is solely attributable to the time of receipt of the specific Registry from its provider and the time required for it to be "loaded" into its information systems. Specifically, it states that it received the Registry on 11-01-2021 and the "loading" of it into its information systems was completed after the execution of the disputed call, and no further calls were made to the telephone number.

G.B.9 – G.B.10: Accepts that it made calls on 14-02-2022 and 15-02-2022 to the numbers of the complainants, who were registered in the Registry. The calls are solely attributable to the time of receipt of the specific Registry and the time required for it to be "loaded" into its information systems. Specifically, it states that it received the Registry on 10-02-2022 and the "loading" of it into its information systems was completed after the execution of the disputed calls, and no further calls were made to the telephone numbers.

G.B.11: Accepts that it made a call on 22-03-2022 to the number of the complainant, who was registered in the Registry. The call is solely attributable to the time of receipt of the specific Registry from its provider and the time required for it to be "loaded" into its information systems. Specifically, it states that it received the Registry on 16-03-2022 and the "loading" of it into its information systems was completed after the execution of the disputed call, and no further calls were made to the telephone number.

D.1: Accepts that it made a call on 08-03-2022 to the number of the complainant, who was registered in the Registry that it received on 10-01-2022 and 10-02-2022. Specifically, it states that the call lasted only 2.8 seconds and was terminated (without being answered) almost immediately by the dialer, which "recognized" with this infinitesimal delay that the said telephone number of the complainant is registered in the Registry. It also states that the delay of 2-3 seconds for the dialer to terminate the call to a telephone number that is registered in the Registry has been repeated, but it is something the company is trying to remedy. In conclusion, Call Experts argues that the disputed complaints

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fall into two main categories:

(α) in cases where, on average, approximately four working days are required each month for the "loading" into the dialer of the Registry from the date of receipt. It should be taken into account that the very large file of the Registry requires, each time, prior time-consuming processing regarding formatting, as well as that the processing of this file and its "loading" takes place during non-working hours.

(β) calls are made to telephone numbers that are registered in the Registry; however, these calls are automatically terminated by the dialer with a negligible delay of about 2-3 seconds, without being answered, of course. This is due to the fact that at that moment the Company's information system may be under strain (e.g., because someone is pulling a large file), resulting in this small delay in the termination of the call.

Call Experts believes that these cases concern isolated incidents without any intent. This is because the disputed telephone calls were made over a period of two years (six calls in 2021 and six calls in 2022), while systematic and intentional calls to telephone numbers that are included in the Registry in order to gain some substantial economic benefit for the company would, as expected, only arise from a systematic and short-term violation of the Registry. Nor could any substantial economic benefit for the

company arise from any extrapolation. On the contrary, such calls, like the disputed ones, given the sensitivity of consumers (who know that the telephone number is included in the Registry of Article 11), are only detrimental to the company.

In all cases, the company took immediate action to avoid any further disturbance of the complainants for advertising or promotional purposes by including their telephone numbers in the objections registry maintained by the company (Call Experts), and

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no calls have been made thereafter by it.

Finally, the company states that it has never been the subject of concern for the Authority, given the known pathologies of the Registry, while continuously making every possible effort to comply with its obligations, taking into account that it has taken organizational measures to ensure the guarantees required for its compliance with the legality conditions during the execution of promotional and other actions, possessing not only appropriate and documented procedures according to international standards (ISO), but also having provided written and detailed instructions to its staff for the strict adherence to the procedure for maintaining the Registry of Article 11 of Law 3471/2006.

PLEGMAT submitted its memorandum No. G/EIS/10810/07-10-2022, which is similar to that of Call Experts, up to the point where it refers to the individual cases of complaints that were mentioned in the Authority's document No. G/EXE/1772/11-07-2022 and concern it. In relation to these cases, PLEGMAT states the following:

G.E.1: It acknowledges that calls were made on 22-06-2020 and 03-07-2020, during the hours mentioned in the complaint while the complainant's number had been included in the Registry. From its investigation, it emerged that the number had been called by PLEGMAT before its inclusion in the Registry and was characterized as a "recall." PLEGMAT states that the two calls on the above days were made manually by an assigned employee of the company who "strongly suspects" that he kept the complainant's telephone number pending and called it, mistakenly believing that the aforementioned telephone number was still not registered in the Registry. The company states that it took immediate corrective actions to avoid any further disturbance of the complainant for promotional purposes and has additionally included his telephone number in the objections registry that it maintains, and no other calls have been made.

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Γ.E.2: It states that the complainant was called on 03-04-2020, before the inclusion of their number in the Registry on 09-04-2020. While it does not accept that a call was made on the date mentioned in the complaint, it voluntarily states that this number had been included in a special campaign for retraction aimed at resolving outstanding issues for which the Registry is not checked. The company states that it immediately took the necessary remedial actions to avoid any further disturbance to the complainant for promotional purposes and has additionally included their phone number in the objections registry it maintains, and no other calls have been made.

Γ.E.3: It states that it did indeed call the complainant's number on 26-10-2020, but this number was not included in the Registry received by ΠΛΕΓΜΑ from Cosmote on 05-10-2020. During the call, the number was noted with "status IMMEDIATE REFUSAL" and was included in ΠΛΕΓΜΑ's objections registry. ΠΛΕΓΜΑ points out that the complainant's phone number appears for the first time as included in the Registry received from COSMOTE on 09-11-2020. It is noted, however, that based on the views of Elpedison (with reference number Γ/ΕΙΣ/8627/16-12-2020), the complainant's number had been sent to ΠΛΕΓΜΑ on 05-10-2020, while the complainant themselves, in a more recent document, excluded the possibility that they had been called in the past by ΠΛΕΓΜΑ and that the new call resulted from their own request for retraction, as Elpedison had argued based on what it states it was informed by ΠΛΕΓΜΑ.

Γ.E.4 – Γ.E.5.: It accepts calls to the complainants' numbers on 07-02-2022 and 08-02-2022, attributing them exclusively to a systemic error. The company states that it faced a technical problem in the interface with its provider due to a technical failure, resulting in calls not being able to be made from

the cloud dialer located at MED NAUTILUS. Thus, in order to operate on that specific day, and after it had already begun updating the "local dialer" with the renewed registries, it reverted the sellers to the "local dialer" available at the company's facilities (as provided for in the Business Continuity Plan based on ISO: 27001 of the company). However, this update requires time to be fully completed, and given that they had already started making phone calls from the "local dialer," as a sufficient amount of time had passed since the cessation of calls via the "cloud dialer," it appears that the time was not sufficient for the "local dialer" to be fully updated, resulting in the numbers being called.

Γ.Ε.6: It accepts a call to the complainant's number on 16-02-2022, which is due to a systemic error in the interface with its provider due to a technical failure, as in the two previous cases. The company states that in the above cases of technical failure of the "cloud dialer," it immediately took the necessary remedial actions, namely simultaneous systematic updates of both the "cloud dialer" and the "local dialer" with the renewed Registry each time and the objections registry it maintains. It is noted that, although it was requested during the hearing, ΠΛΕΓΜΑ did not provide further documentation for the above incidents, such as technical reports from its provider or MED NAUTILUS, internal technical reports, or internal documentation of the incident and the remedial measures.

Γ.Ε.7: It accepts only one call, on 24-01-2020, which lasted 5 seconds and was noted with "status" "IMMEDIATE REFUSAL." The company states that it immediately included the phone number in the objections registry it maintains and no calls have been made thereafter to that number. However, it is noted that this statement contradicts the data that ΠΛΕΓΜΑ provided to Elpedison (see document with reference number Γ/ΕΙΣ/7350/26-10-2020) from which it appears that two calls were made on 13-02-2020 and 31-03-2020.

In conclusion, ΠΛΕΓΜΑ states that the disputed calls are minimal and cover a period of three years, concern isolated incidents, could not result in any financial benefit for the company, do not exceed the "psychological threshold" of 10 set by the Authority, and ultimately may only result in...

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against it, as it causes damage and exposes it. Finally, the company states that it has never employed the Authority (note: it is emphasized, however, that by decision 38/2019, the Authority imposed the sanction of reprimand on ΠΛΕΓΜΑ for violation of Article 32 of the GDPR during the processing of personal data of a subscriber who received a call while having registered their number in the Registry), given the known pathologies of the Registry, and it continuously makes every possible effort to comply with its obligations, taking into account that it has taken organizational measures to ensure the guarantees required for its compliance with the conditions of legality during the execution of promotional and other actions, possessing not only appropriate and documented procedures according to international standards (ISO), but also having provided written and detailed instructions to its staff for the strict adherence to the procedure for maintaining the Registry of Article 11 of Law 3471/2006. The Authority, after examining all the elements of the file and having heard the rapporteur and the assistant rapporteur, after thorough discussion.

CONSIDERED ACCORDING TO THE LAW

1. The issue of telephone calls for the purposes of direct promotion of products or services and for any kind of advertising purposes is regulated by Article 11 of Law 3471/2006, which introduces regulations regarding unsolicited communications (see paragraphs 1 and 2). Specifically, Article 11 paragraph 1 of Law 3471/2006 states that: "The use of automatic calling systems, particularly using facsimile devices (fax) or electronic mail, and generally the making of unsolicited communications by any means of electronic communication, without human intervention, for the purposes of direct commercial promotion of products or services and for any kind of advertising purposes, is permitted only if the subscriber has expressly consented in advance," while paragraph 2 of the same article states that: "The making of unsolicited communications with human intervention (calls) for the above purposes is not permitted, provided that the subscriber has declared to the provider of the publicly available service that they do not wish to receive such calls in general. The provider is obliged to register these declarations free of charge in a special subscriber list, which is available to any interested party."

Consequently, telephone calls with human intervention, in light of the above purposes, are permitted unless the called party has declared that they do not wish to receive them (opt-out system).

Advertisers, when conducting telephone promotional activities with human intervention, are obliged to obtain updated copies of the registries of Article 11 of Law 3471/2006 from all providers and to ensure that they have available the declarations of subscribers that have been made up to thirty days prior to the making of the telephone call (see also the Authority's Decisions numbered 62-67/2016).

2. Furthermore, the telephone number of a natural person constitutes personal data, as it can serve as an element of indirect identification of its holder (cf. Article 4 paragraph 1 of Regulation (EU) 2016/679, hereinafter GDPR), allowing communication with them. According to Opinion 4/2007 of the Article 29 Working Party of the EU regarding the concept of personal data, especially in the operation of electronic services, elements of indirect identification can sufficiently distinguish an individual from others within a specific set, even if their name has not been verified.

3. The conduct of telephone calls for the purpose of promoting products and services is primarily regulated by Article 11 of Law 3471/2006. It is noted, however, that Article 3 paragraph 2 of this law clarifies that “Law 2472/1997, as in force, and the executive laws of Article 19 of the Constitution, as in force, apply to any issue related to the provision of electronic communications services that is not specifically regulated by this law.” Furthermore, after the implementation of the GDPR, any reference to Law 2472/1997, which was issued in compliance with Directive 95/46/EC,

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is understood as a reference to the GDPR (see also Article 94(1) GDPR). Therefore, for any issue related to the provision of electronic communications services to subscribers or users who are natural persons and which is not specifically regulated in Law 3471/2006, the GDPR applies (see also Article 95 GDPR as well as Recital 173, and Opinion 5/2019 of the EDPS regarding the interaction between the Directive on privacy in electronic communications and the GDPR, particularly concerning the competence, duties, and powers of data protection authorities).

4. Article 4(7) of the GDPR defines the data controller as “the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data...”. The processor is defined in the following paragraph of the same article as “the natural or legal person, public authority, agency, or other body which processes personal data on behalf of the controller.”

5. Article 28 of the GDPR, which regulates matters concerning the processor, specifically states in paragraph 1 that when processing is to be carried out on behalf of a controller, the controller shall use only processors providing sufficient guarantees to implement appropriate technical and organizational measures in such a manner that processing will meet the requirements of the regulation and ensure the protection of the rights of the data subject. Paragraph 3 of the same article stipulates that processing by the processor shall be governed by a contract or other legal act under Union or Member State law, which binds the processor to the controller and sets out the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, and the obligations and rights of the controller. This contract or other legal act specifically provides, among other things, that the processor processes personal data only on documented instructions from the controller and takes all necessary measures pursuant to Article 32 of the GDPR.

6. Article 29 of the GDPR states that “The processor and any person acting under the authority of the controller or of the processor, who has access to personal data, shall process those data only on instructions from the controller, unless required to do so by Union or Member State law.” This provision imposes an obligation on the processor to process data only on the instructions of the controller, unless a law provides otherwise. Therefore, a breach of this provision by processors constitutes a violation of the GDPR on their part.

7. Article 32 of the GDPR provides, among other things, that both the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate

to the risk, taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons. The controller and the processor shall take measures to ensure that any natural person acting under the authority of the controller or the processor who has access to personal data processes them only on instructions from the controller. From these provisions, it follows that the responsibility for maintaining appropriate security measures lies with both the controller and the processor, and thus, the responsibility for a breach of security measures should be shared and appropriately allocated.

8. In the Guidelines of the EDPS 07/2020 regarding the concepts of the controller and the processor in the GDPR, it is stated (Recital 127) that the level of instructions provided by the controller to the processor regarding...

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The measures to be taken depend on the specific circumstances. In certain cases, the data controller may provide a clear and detailed description of the security measures that must be implemented. In other cases, the data controller may outline the minimum security objectives that must be achieved, while simultaneously requesting the processor to propose the implementation of specific security measures. In any case, the data controller must provide the processor with a description of the processing activities and the security objectives (based on the risk assessment of the data controller), as well as the approval of the measures proposed by the processor.

9. In paragraph 10 of Article 28, it is stated that "Subject to Articles 82, 83, and 84, if the processor determines the purposes and means of processing in violation of this regulation, the processor shall be considered a data controller for that specific processing." Therefore, in cases where a processor, even within the broader context of its cooperation with a data controller, engages in processing activities for which it does not have documented instructions (either specific or general) from the data controller, it must be considered as the data controller, as it determines the purpose and means of those activities.

10. From the file's elements, it appears that Elpedison, through a contract, assigns collaborating call center companies to conduct advertising calls to promote its own products and services. Through the contracts, printed instructions, and other directives provided to these companies, Elpedison sets a series of specifications that define the operational framework of each of its partners with the aim of meeting the requirements of the GDPR and Law 3471/2006. Elpedison fully determines the purpose of the processing, and thus its objective, while also defining the key characteristics for the means of processing. As explicitly stated in Elpedison's instructions to the collaborating companies (see page 8 of the instruction document), "The contact list with the details of individuals called by Elpedison's partners is either sent by Elpedison to the partner or generated based on a random numbering range." Consequently, Elpedison is the data controller for both calls to a "cold list" and to targeted lists ("warm list"). Specifically, the following activities of personal data processing and telephone calls for commercial promotion to subscribers, which largely include natural persons, are identified and examined:

i. Calls from companies collaborating with Elpedison to a random numbering range, as selected based on criteria from Elpedison ("cold list"). For these calls, the legal basis for processing, taking into account Article 11 paragraphs 1 and 2 of Law 3471/2006, may be Article 6 paragraph 1 (f) of the GDPR ("processing is necessary for the purposes of the legitimate interests pursued by the data controller or a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, especially if the data subject is a child"), to the extent that it is ensured that numbers that have been registered in the Registry are not called and that the principles of Article 5 of the GDPR and the other conditions set by the Regulation are met, such as in relation to the satisfaction of the principle of transparency (see in particular Article 14 of the GDPR) and the satisfaction of the rights of the called data subjects.

ii. Targeted calls to numbers that have been pre-selected based on various criteria, such as due to the consumer's desire, due to a "call back" note, etc. Specific cases of this category of calls include the

following actions:

a. Calls based on lists provided by Elpedison ("warm list") e.g.

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customer lists for outreach.

b. Calls that arise after a request from the called subscriber, such as when they request a callback.

c. Calls to numbers after direct collection actions by the subscribers of their data to be called, such as for example through the website "fthinoreyma.gr".

For these calls, the legal basis for processing, taking into account Article 11 paragraphs 1 and 2 of Law 3471/2006, may be:

For case a, either the aforementioned Article 6 paragraph 1 (f) of the GDPR, such as for calls to existing customers of the data controller, provided that they have not expressed opposition (either generally through the Registry or specifically), or Article 6 paragraph 1 (a) of the GDPR (consent).

Calls based on consent may also be made to subscribers who have registered in the Registry of Article 11 paragraph 2 of Law 3471/2006.

For case b, the legal basis that may be more easily applicable in the case of a request from the called subscriber is their consent, while specifically in cases where the called subscriber has registered in the Registry, consent is the only legal basis for them to be called, even in the case of a callback.

For case c, the first stage of the processing activity involves the collection of data directly from the data subject (the subscriber to be called) through their own actions; therefore, the most appropriate legal basis may again be consent, without excluding the legal basis of processing that is necessary to take measures at the request of the data subject prior to the conclusion of a contract (Article 6 paragraph 1 (b) of the GDPR).

It goes without saying that in all cases, the other conditions provided for in the GDPR must be met, both in relation to the fundamental principles of Article 5 (especially the satisfaction of the principle of transparency and the requirements of Article 14 of the GDPR) and in relation to the requirements of lawful consent, as defined in Articles 4 paragraph 11 and 7 of the GDPR. It is particularly emphasized that in cases of consent, the data controller must be able to demonstrate that the data subject consented to the processing activity. Specifically, the data controller must obtain consent in such a way that it can be securely verified that the specific data subject has taken a positive action of declaration. Therefore, a note in an information system entered by an employee of the controller or processor cannot be considered valid consent, as there is insufficient evidence to prove that the specific subscriber, a natural person, requested the call. Furthermore, the lack of response from a subscriber to a call directed at them cannot be considered valid consent when the initial call was not made on the legal basis of consent. Finally, for the application of the legal basis of Article 6 paragraph 1 (b), the data controller must be certain that the request comes from the actual subscriber and not from a third party; therefore, they must implement measures to ensure that the specific subscriber (natural person) requested the call during the pre-contractual stage. These measures must be commensurate with the case of proving consent.

iii.

The activity concerning the collection of the Registry through telephone service providers, its consolidation, and the potential sending of it to the final recipients (e.g., processors) for use during the calls. This activity has been found to be carried out by Elpedison. It is also noted that some of the collaborating companies also collect the Registry. This activity is necessary based on Article 11 of Law 3471/2006 (and thus has a legal basis in Article 6 paragraph 1 (c) of the GDPR, which concerns processing that is necessary for compliance with a legal obligation of the data controller) and burdens as

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the obligation lies with the data controller and not with the data processors, who may engage in such activities for the specific purpose only after receiving explicit instructions from the data controller.

iv. The activity concerning the maintenance of a special register of objections by subscribers who are natural persons, namely the register of subscribers who, exercising their right to object under Article 21

of the GDPR, oppose the processing for direct marketing purposes, with a declaration that, based on Article 21(3) of the GDPR, must result in the cessation of the processing of the data of those subscribers for promotional purposes by the data controller. It has been established that such a register of objections is maintained both by Elpedison and by companies collaborating with Elpedison, such as Call Experts and ΠΛΕΓΜΑ, for the calls they make for promotional purposes on behalf of Elpedison and possibly third parties. This activity is necessary to satisfy the aforementioned Article 21 of the GDPR (and thus has a legal basis in the aforementioned Article 6(1)(c) of the GDPR) and is an obligation of the data controller (Elpedison) but not of the data processors. The data controller is responsible, based on Article 12 of the GDPR, for fulfilling the rights of the data subjects. The data processors may engage in such activities for the specific purpose only after receiving explicit instructions from the data controller. Regarding the register of objections, it is noted that Elpedison has included a specific term in the instruction document that binds the collaborating call center companies. In this (see section 8.1, page 10), it explicitly states that "Especially regarding the expression of objection/objection/desire not to retract by the data subject at the time of the call concerning calls similar to the one being made to the data subject, the staff of the partner must record this desire along with the identification and contact details of the person and inform Elpedison through a procedure specified (e.g., via email, via CRM) regarding this request of the person." Therefore, the maintenance of a special register of objections internally by each call center company, when it is not the data controller, does not meet the requirements of Article 21 of the GDPR. This is because a called natural person who has expressed an objection to receiving calls for the promotion of Elpedison may be called again by another call center company for the promotion of Elpedison. Finally, if a call center company maintains such an internal register of objections for calls it carries out for multiple clients or for calls it carries out for a client without explicit instructions from that client, then it is considered the data controller and is liable for unlawful processing of personal data.

It is noted that the processing of a subscriber's (natural person's) data that occurs after the acceptance stage of an offer, which is of course included in the contracts between Elpedison and the call center companies, is not the subject of examination in this case.

11. The data controller and the data processor undertake to implement appropriate measures to ensure an adequate level of security against risks. The responsibility for the failure to implement appropriate measures, in violation of Articles 28, 29, and 32 of the GDPR, should be appropriately allocated between the data processor and the data controller. Therefore, in cases where an error occurs in the implementation of security measures by the data processor, who has specified the general measures set by the data controller, the data processor bears a greater burden for the implementation of those security measures. However, if it is found that the data processor violates the obligations imposed on it by...

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In relation to the contract, if the processor processes data beyond or in violation of the instructions of the data controller, then a violation of Article 29 of the GDPR arises from the processor.

12. Regarding the technical and organizational measures that the controller and the processor must take in order to ensure an appropriate level of security against risks, it is noted that these measures cannot always prevent every potential incident of data security breach. However, it is necessary, after any failure of these measures, to follow up with an assessment and evaluation of their effectiveness, as an essential element for maintaining the security of the processing. Consequently, a primary step is the documentation of the incident, so that it is recorded and the compliance of the data controller with the principles of Article 5 of the GDPR is evidenced, as required by the principle of accountability. Such failures must be recorded, and to the extent that they concern an incident of security breach (of the requirements of confidentiality, integrity, or availability), the provisions of Article 33 of the GDPR regarding the notification of the incident to the supervisory authority also apply. Moreover, if such an incident is detected by the processor, it is their responsibility to promptly inform the data controller about the incident, without even conducting a risk assessment of the incident.

13. The responsibility of Elpedison as the data controller in relation to the processors is, at the initial

stage, to provide appropriate tools, guidelines, and instructions so that only lawful calls and only lawful activities of personal data processing are carried out. In the examined cases, it was found that within the framework of these obligations, Elpedison collects the Registers from the providers at regular intervals, consolidates them, and sends them to the collaborating call center companies that carry out the processing. At the same time, it maintains a special register of those who have objected to receiving phone calls (based on Article 21 of the GDPR), which is also sent to the collaborating companies. It is determined that this activity is well-designed, but it remains to be checked how it has been implemented in each of the cases of the examined complaints. This is because, at the second stage, Elpedison's responsibility also concerns the adequacy of the control and supervision of the processors as well as the actions taken by the company itself as soon as it becomes aware of the complaints, in order to check the effectiveness of its procedures and the operation of the collaborating companies and their application of the instructions provided to them, to identify areas where these procedures can be improved or instances where the collaborating companies violate their obligations, and in case a violation is found, to take the necessary measures to avoid similar incidents in the future.

14. Regarding the individual complaints, the following is noted: In cases A.1, A.3, A.4, and A.6, small delays are observed in the receipt and sending of the Registers from Elpedison, which are marginal (i.e., a few days after the one-month period), while in one case (A.6), the delay is more justified due to the lack of response from a provider to the company's request for the receipt of the Register. For complaint A.2, a clear and unintended error by an employee is noted, which was indeed documented through the internal communications of the company. Therefore, it is accepted that this is a case of an isolated error. For complaint A.5, it appears that Elpedison initially did not receive the Register from a provider with a particularly small number of subscribers, but as soon as it was informed about the complaint, it took appropriate corrective actions.

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Therefore, in the six (6) cases mentioned above, a violation of the provision of Article 11 of Law 3471/2006 arises, involving calls to subscriber numbers that had been included in the registry of Article 11, paragraph 2 of their provider. However, it is accepted that no systematic fault or systemic failure was found on the part of Elpedison and that the aforementioned complaints concern isolated incidents.

15. For the cases of category B, the Authority finds that from the existing evidence, a violation by the companies under examination cannot be established, even though the complainants provide sufficient evidence to prove that they have received telephone calls. However, the evidence presented by the call center companies and Elpedison is sufficient, at this stage, to demonstrate that they did not make these calls, especially as detailed lists of outgoing calls are provided, even from their provider. It cannot be ruled out that some of the Call Center companies made calls in another way (e.g., via VoIP technology or another similar technique), but with the existing evidence, further investigation is not possible. Furthermore, the specific cases represent a small number of isolated phenomena, which do not appear to be recurring, nor have other similar incidents been reported to the Authority in relation to these companies. The Authority will monitor in the future for the emergence of similar complaints in order to determine whether specialized auditing action is required.

Regarding the cases of complaints in category C:

16. Concerning the companies Teleraise (case C.G.1) and Befon (three cases C.A.1-3), it is found that due to isolated errors, the companies made calls to subscribers who had been included in the registry, while they had received the appropriate instructions from the data controller. As emerges from the examined evidence, the companies themselves acknowledge their errors, which are few in number and pertain to a period of more than two years, while they have taken measures to limit them.

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17. Regarding Call Experts IKE:

A key finding of the Authority is the delay in integrating the Registry into its systems. It is noted that it cannot be accepted that this process requires an exceptionally long time. It is a repetitive process, which concerns only telephone numbers, although in a quite large number, meaning a single data

point with a very specific format, which can be easily verified. It must be accepted that some additional time is required for the verification of the Registry records obtained from the providers and for the homogenization of the files, as the format in which the Registry files are received from each provider differs; however, the Authority believes that such processes can now be easily automated, as after more than a decade of operating the Registry, issues of homogenization and formats should be recognized and resolved promptly, primarily in an automated manner and with minimal human intervention. Delays beyond one working day are not reasonable, while when a weekend intervenes, the company has the opportunity to complete these processes even more easily. This action should be the company's top priority, as it relates to the satisfaction of citizens' rights and constitutes a legal obligation of the data controller, which has been assigned through contracts to the Call Center companies. Therefore, it may be considered that in the telephone calls in cases C.B.4 and C.B.5 (which occurred one working day after the receipt of the Registry file) there is no violation by Call Experts, while in the cases of the five (5) cases C.B.6 (11 days delay in implementing the Registry), C.B.8 (6 days), C.B.9 (3 days while a weekend intervenes), C.B.10 (4 days while a weekend intervenes), and C.B.11 (5 days while a weekend intervenes) a violation of Article 32 of the GDPR arises. Furthermore, to avoid errors, the automatic system for conducting and

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The call routing system (dialer) must be configured to reject calls before they even begin. It is not acceptable to perform such a check after the call routing has started, as there is a possibility of calling a subscriber who has objected. Therefore, in the case of automated calls, numbers should be rejected before they are loaded into the dialer (cases G.B.1 and D.1). For cases of manually dialed calls, which would only be permitted in exceptional circumstances, appropriate measures should be in place to ensure that before the call is made, it is verified that the number is not listed in the Registry or the objections registry, or that there is specific consent (case G.B.2). Consequently, from these three (3) specific cases of complaints, a systemic problem arises in the applications of Call Experts and a violation of Article 32 of the GDPR by the data processor.

For the other two cases of complaints (G.B.3, G.B.7), Call Experts states that a human error (in the first of these) and a technical error (in the second) occurred. However, it does not provide any relevant documented evidence of the error, nor are any internal communications submitted that could be considered as the minimum means of indication for the error. In fact, even in the case of the license upgrade, it is not specified which licenses these were and how they affected the processing. Furthermore, it is found that in no case has such an error been reported to the Authority or that an internal process was initiated by the data processor to inform the data controller regarding the error, as required by the data processor under Article 33(2) of the GDPR. Therefore, the claims of Call Experts regarding the justification of the errors are dismissed as unfounded and unproven, and thus violations of Article 32 of the GDPR arise.

18. Regarding Zitatel, it should be noted that it did not submit a memorandum of opinions, despite the presence of its representatives during the hearing, based on what has been communicated to the Authority by Elpedison, the following is established:

In the cases of the six (6) complaints G.D.1, G.D.2, G.D.3, G.D.4, G.D.6, G.E.7, errors are mentioned for which no documentation is provided. Therefore, based on the reasoning developed above, the related claims of the company are dismissed as unfounded and unproven. It is noted that to avoid errors, the call checks must also include "manual" calls, which may be allowed either to numbers not included in the Registry or following consent that meets the characteristics of the GDPR. Consequently, in the above cases, a violation of Article 32 of the GDPR is established.

In the case of complaint D.2, it arises, as Elpedison states, that there was negligent behavior by Zitatel due to the failure to provide information to the data controller. Therefore, since the investigation process of a complaint is a necessary stage for evaluating the security measures taken, a violation of Article 32 of the GDPR also arises for which Zitatel is responsible.

19. Regarding the operation of the website fthinoreyma.gr, the collection of personal data through it,

and the subsequent conduct of telephone calls with "consent," it is established that concerning the two complaints under investigation (G.D.5-G.D.6), Zitatel was the data controller, as it was an action that was implemented for the promotion of Elpedison's products and services, but beyond the instructions of Elpedison. This specific activity was also carried out in violation of the principle of transparency and the principle of legality of Article 5(1)(a) of the GDPR, as at the time of the complaints, the information on the website indicated a different company as the data controller and there was no information regarding the recipients (e.g., Zitatel). Furthermore, the collection of telephone numbers through their declaration in a website form does not meet the requirements of valid consent. This is because the data controller is not in a position to prove that the specific data subject who is a subscriber or at least a user of the telephone number consented to the

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The processing action, that is, it was this individual and not a third party who registered their phone number on the website. The Authority reminds that it has issued guideline 2/2010 regarding electronic consent within the framework of Article 11 of Law 3471/2006, which provides guidance on the minimum measures of proof of consent concerning the collection of phone numbers and other electronic communication data. Consequently, statements and other personal data obtained by Zitatel through the aforementioned website have not been collected lawfully and must additionally be deleted. 20. It is also noted that even after the new agreement between Elpedison and Zitatel, based on which the operation of the website fthinoreyma.gr will be conducted on behalf of Elpedison, it is not clear that the risk of subscriber data (e.g., phone number) being entered into the online form by third parties has been addressed. Therefore, the legality of the requests and other personal data obtained through the said website must be evaluated, even after the agreement with Elpedison, and in case the above risk has not been addressed, this data must also be deleted.

21. Regarding PLEGMAT:

As mentioned above, in cases of "retraction" or calls made at the request of the called party, the legal basis for the processing of personal data for the implementation of the call appears to be consent. Therefore, the information to prove this must provide certainty that the specific natural person/subscriber performed the action considered as consent within the meaning of Article 4, point 11 of the GDPR. For this purpose, a simple note in the company's systems is not sufficient, and in any case, the Registry must be checked before making any retraction for which there is no consent. Consequently, in the four (4) complaint cases G.E.1, G.E.2, G.E.3, and G.E.7, it is found that PLEGMAT, due to the failure to take adequate measures to avoid unlawful calls, violated Article 32 of the GDPR.

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In the complaint cases G.E.4-6, PLEGMAT exclusively cites a systemic error due to a technical problem in its interface with its provider and Med Nautilus. Although requested by the Authority, no relevant documented evidence of the error was provided, nor was it mentioned that a data breach incident management process was initiated with the timely notification of the data controller, as required by Article 33, paragraph 2 of the GDPR. In any case, such an incident could have been addressed immediately using the "local dialer" infrastructure, but based on PLEGMAT's reports, this specific infrastructure operated, at least for some hours and indeed on different days, without the updated Registries, in violation of the obligations of the processor arising from Article 32 of the GDPR. 22. It is also noted that both Call Experts and PLEGMAT state that they maintain an internal registry of objections, based on which they do not call again those subscribers who complain during the call. It is emphasized that, as analyzed above, "Call Center" companies are not authorized to maintain their own objections file, and this processing is outside the scope of the contract with the data controller, in violation of Article 29 of the GDPR. Conversely, they are obliged, as soon as a called subscriber informs them that they wish to exercise their right to object, to record this statement and immediately transfer this information to the data controller, so that it can be included in the objections file that they maintain, as stipulated in the contract with Elpedison. In the event that the aforementioned two Call Center companies still maintain such a registry, they must immediately forward it to the data controller

(and in cases involving multiple controllers, to each respective controller) and delete it. However, the Authority deems that this activity was carried out without intent and was, albeit inadequately, in the interest of the called subscribers; therefore, no further corrective measures are required beyond those mentioned above.

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23. For all complaints of category C, it is crucial to examine the role of Elpedison as the data processor. As mentioned, the Authority accepts that Elpedison has appropriate policies and procedures regarding the conduct of telephone calls for the promotion of its products and services, which it has communicated to the companies collaborating with it. At the same time, as indicated in its memorandum, it has taken steps to control the organizational and technical measures followed by some of these companies, as evidenced by the detailed audit reports submitted to the Authority. However, it is found that the process of reviewing the complaints forwarded by the Authority to Elpedison is inadequate and does not include a thorough investigation of the causes that led to an unlawful call. Elpedison, like any data processor, should not rely solely on the assurances received from the respective data processors but should identify the source of each error as soon as it is detected and take appropriate corrective measures. In this way, calls that are conducted "manually" and with human error, without checking the Registry, could have been avoided. Additionally, the failure to maintain an internal registry of objections in each company could have possibly been identified. Finally, the delay of a company in integrating the Registry would certainly have been identified, which should have led to the immediate adoption of relevant measures. It is also noted that, especially when the number of promotional calls is large, as reported by all companies, Elpedison, as the data processor, must take proactive control measures regarding the measures and procedures implemented by the data processors, such as conducting audits on the collaborating companies. These audits should not be limited to organizational and technical issues but, where the number of calls is large, in the order of thousands per day, should include a review of the calls made over a satisfactory period of time. Indeed, given that Elpedison already has the monthly Registry and that the data processors are required to maintain records of outgoing calls, such a review, which consists of automated cross-referencing of files with numbers (from the Registry and the outgoing call records), considering the current level of technology, is simple to implement and can be repeated periodically on a sufficient sample of calls, within a period not exceeding one year. Therefore, it is determined that Elpedison has not taken the appropriate measures, based on Article 32 of the GDPR, for the control of the data processors.

24. According to the previous considerations, the following is determined for Elpedison:

- i. In six (6) cases, as reflected in paragraph 14 of this document, a violation of the provision of Article 11 of Law 3471/2006 is found, involving calls to subscriber numbers that had been included in the Registry of Article 11 paragraph 2 of their provider. Regarding these, the Authority considers that the appropriate sanction is a warning, based on Article 21 paragraph 1 subparagraph a of Law 2472/1997, in conjunction with Article 84 of Law 4624/2019.
- ii. Regarding the measures taken by Elpedison for the control of the data processors (paragraph 23), a violation of Article 32 of the GDPR is found, and the Authority considers that it must impose an administrative fine based on Article 58 paragraph 2 subparagraph h of the GDPR.
- iii. Additionally, based on Article 58 paragraph 2 subparagraph d of the GDPR, the Authority considers that it must order Elpedison, within a period of six months from the notification of the decision, to design a control procedure for Call Center companies, which should include, at least once a year, a full or sample audit of a large number of outgoing calls from each Call Center in relation to the calls made, in order to ascertain their legality. Elpedison must inform the Authority about the implementation of this procedure.

25. For Teleraise and Befon, at this stage, the Authority considers that no further action is required.

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corrective measure, in light of the findings in paragraph 16.

26. For Call Experts, a violation of Article 32 of the GDPR arises in ten (10) cases of complaints, as

mentioned in paragraph 17, due to insufficient security measures taken during the processing. Therefore, the imposition of an administrative fine based on Article 58(2)(h) of the GDPR is appropriate.

27. For Zitatel, a violation of Article 32 of the GDPR arises in seven (7) cases of complaints due to insufficient security measures taken during the processing, as mentioned in paragraph 18. Therefore, the imposition of an administrative fine based on Article 58(2)(h) of the GDPR is appropriate.

28. Furthermore, for Zitatel, it is found that in two cases of complaints (one of which includes an error during the call), the complainants were called after registering their phone number on the website "www.fthinoreyma.gr", as described in paragraph 19. In these two cases, a violation of Article 5(1)(a) of the GDPR is established, and the imposition of an administrative fine based on Article 58(2)(h) of the GDPR is appropriate. Additionally, regarding the aforementioned website, an order must be given to Zitatel, based on Article 58(2)(f) of the GDPR, to delete statements and other personal data that were collected by Zitatel through that website.

29. For the company PLEGMA, a violation of Article 32 of the GDPR arises in seven (7) cases of complaints, as mentioned in paragraph 21, due to insufficient security measures taken during the processing. Therefore, the imposition of an administrative fine based on Article 58(2)(h) of the GDPR is appropriate.

30. For the companies PLEGMA and Call Experts, regarding the maintenance of an internal register of objections, as described in paragraph 22, the appropriate administrative measure is the prohibition of processing and the actions described in paragraph 22, based on Article 58(2)(e) of the GDPR.

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31. For the assessment of fines, based on Article 83 of the GDPR, the Authority takes into account the guidelines 4/2022 of the EDPB for the calculation of administrative fines and the following:

i. The latest available turnover of the companies and specifically:

- Elpedison: €3,192,742,000 (year 2022)
- Call Experts: €961,496.96 (01/07/2021-30/06/2022)
- Zitatel: Not publicly available.
- PLEGMA: €4,081,489.09 (year 2021)

ii. That the severity of the established violations is assessed in all cases as minor, taking into account the number of violations and the telephone calls found to have been made in violation of the legislation, the time period, the small number of violations relative to the total number of calls made, and the fact that it has been established by the Authority's audits that a small percentage of those receiving unlawful calls proceed with a complaint (see decisions 60-63/2018 of the Authority), and that the violations fall under those of Article 83(4) of the GDPR except for the violation by Zitatel concerning the website fthinoreyma.gr, which falls under those of Article 83(5) of the GDPR.

iii. The Authority considers the following as mitigating factors:

- a. Elpedison has demonstrated that it is gradually improving the measures implemented for its compliance with the GDPR and Law 3471/2006, taking measures such as conducting audits on collaborating companies.
- b. The difficulty of implementing the provision of the Register (for all companies).
- c. Specifically for the case of Zitatel and the website fthinoreyma.gr, the changes in its operation, with the designation of the data controller and the provision of more comprehensive information.

iv. The Authority considers the following as aggravating factors:

- a. The three call center companies (Call Experts, PLEGMA, Zitatel) have as their main object of activity the making of telephone calls, and therefore they must fully know and respect the relevant regulatory framework.
- b. In the case of PLEGMA, there has been a previous reprimand with decision 38/2019, which is entirely relevant, while the first complaints against PLEGMA concern calls made in 2020, shortly after the issuance of that decision.

32. Based on the above, the Authority unanimously concludes that, in light of the violations established and taking into account the above factors, the conditions for imposing the corrective measures mentioned in the operative part of this decision, including the administrative fines deemed effective,

proportionate, and deterrent, against the companies Elpedison, Call Experts, PLEGMA, and Zitatel are met.

FOR THESE REASONS

The Authority:

a. imposes, on ELPEDISON ELECTRICITY PRODUCTION SINGLE-MEMBER SOCIETE ANONYME:

i. based on Article 58(2)(h) of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that

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It is appropriate in this specific case, according to the particular circumstances, to impose a fine of one hundred twenty-seven thousand seven hundred nine euros (127,709), for the aforementioned established violation of Article 32 of the GDPR as analyzed in paragraph 24 point ii of this document.

ii.

Based on Article 58 paragraph 2 subparagraph d of the GDPR, it orders that, within a period of six months from the notification of the decision, a procedure for auditing the Call Center companies be designed, which shall include, at least once a year, a full or sample audit of a large number of outgoing calls from each collaborating company and to inform the Authority after the implementation of this procedure, as analyzed in paragraph 24 point iii of this document.

iii.

Based on Article 21 paragraph 1 subparagraph a of Law 2472/1997, in conjunction with Article 84 of Law 4624/2019, the sanction of the warning concerning the six (6) complaints analyzed in paragraph 24 point i of this document.

b. imposes on CALL EXPERTS TELEPHONE CENTER SERVICES I.K.E.:

i.

Based on Article 58 paragraph 2 subparagraph h of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that is appropriate in this specific case according to the particular circumstances, in the amount of ten thousand euros (10,000), for the aforementioned established violation of Article 32 of the GDPR, as analyzed in paragraph 26 of this document.

ii.

Based on Article 58 paragraph 2 subparagraph f of the GDPR, a prohibition on maintaining an internal register of objections, as analyzed in paragraph 27 of this document.

c. imposes on ST & Co. E.E.:

i.

Based on Article 58 paragraph 2 subparagraph h of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that is appropriate in this specific case according to the particular circumstances, in the amount of six thousand euros (6,000), for the aforementioned established violation of Article 32 of the GDPR, as analyzed in paragraph 27 of this document.

ii.

Based on Article 58 paragraph 2 subparagraph h of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that is appropriate in this specific case according to the particular circumstances, in the amount of five thousand euros (5,000), for the aforementioned established violation of Article 5 paragraph 1 subparagraph a of the GDPR, as analyzed in paragraph 27 of this document.

iii.

Based on Article 58 paragraph 2 subparagraph f of the GDPR, it orders that statements and other personal data obtained through the website fthinoreyma.gr, with Zitatel as the data controller and retained for the purpose of promoting products and services, be deleted, and subsequently the Authority be informed, as analyzed in paragraph 28 of this document.

d. imposes on PLEGMA NET M.E.P.E.:

i.

Based on Article 58 paragraph 2 subparagraph h of the GDPR, the effective, proportionate, and deterrent administrative monetary fine that is appropriate in this specific case according to the particular circumstances, in the amount of twenty thousand euros (20,000), for the aforementioned

established violation of Article 32 of the GDPR, as analyzed in paragraph 29 of this document.

ii.

Based on Article 58 paragraph 2 subparagraph f of the GDPR, a prohibition on maintaining an internal register of objections, as analyzed in paragraph 30 of this document.

The President

The Secretary

Konstantinos Menoudakos

Georgia Palaiologou